

		California has adopted a pure comparative negligence system. (<i>Li v. Yellow Cab Co.</i> (1975) 13 Cal.3d 804, 874-875.) Similarly, Defendant's 10th affirmative defense seeks to impose stricter comparative fault rules. The affirmative defense seeks to bar any recovery if Plaintiffs were "negligent or otherwise at fault, wholly or in part" Thus, Plaintiffs' demurrer to the 4th and 10th affirmative defenses is sustained on this ground. Defendant's 5th affirmative defense seeks defense costs under Code Civ. Proc., § 1038. Section 1038 is limited to civil actions for indemnity and contribution. Plaintiffs have not made a claim for indemnity or contribution. Thus, Plaintiffs' demurrer to the 5th affirmative defense is sustained on this ground. Defendant's 14th affirmative defense asserts the defense of laches. However, laches is a defense for causes of action in equity and not at law. Defendant has failed identify any cause of action in the Complaint which is a claim in equity. Thus, Plaintiffs' demurrer to the 14th affirmative defense is sustained on this ground. Defendant's 15th affirmative defense claims Defendant did not receive notice of the duty to defend Plaintiffs. However, Plaintiffs have not alleged Defendant failed to defend them. Thus, Plaintiffs' demurrer to the 15th affirmative defense is sustained on this ground.
8.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	DEMURRER TO COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's demurrer to the First through Thirteenth Causes of Action alleged in Plaintiff Ricardo Guzman's Complaint is OVERRULED. <u>First Cause of Action for Nonpayment of Wages:</u> To establish a cause of action for nonpayment of wages, the plaintiff must prove: (1) plaintiff performed work for defendant; (2) defendant owes plaintiff wages under the terms of the employment; and (3) the amount of unpaid wages. (CACI 2700.) The Complaint alleges that Plaintiff worked for Defendant as a non-exempt employee from January 2025 through September 2025. (Complaint, ¶ 12.) The Complaint further alleges Defendant regularly failed to pay Plaintiff all wages under the terms of the employment, including commissions. (Complaint, ¶ 43.) Defendants violated, or caused to be violated, the applicable IWC Wage Order(s) and California Labor Code sections 201, 202, 204, 218, 1194, 1197, and 1198 as a result of the nonpayment of wages. (Complaint, ¶ 44.) Although the Complaint does not allege the amount of unpaid wages, this information can be obtained through discovery. The allegations are sufficient at the pleading stage to withstand demurrer. Therefore, the demurrer to the first cause of action is OVERRULED.

Second Cause of Action for Nonpayment of Minimum Wages, Third Cause of Action for Nonpayment of Overtime Compensation, Fourth Cause of Action for Failure to Provide Meal Periods, Fifth Cause of Action for Failure to Provide Rest Periods and Sixth Cause of Action for Unreimbursed Business Expenses:

Defendant contends the second through sixth causes of action are inadequately pled because the Complaint fails to allege supporting facts. Specifically, Defendant contends Plaintiff does not allege a single day or workweek in which he worked uncompensated overtime, an estimate or approximation of how many overtime hours he worked, any specific dates or timeframe during which Defendant denied him meal or rest periods, facts showing Defendant impeded or prevented breaks, or what business expenses were incurred and why. Defendant cites no authority stating that Plaintiff must specifically allege the workdays or workweeks in which he worked overtime, number of overtime hours worked, or specific dates or timeframe during which Defendant denied him meal or rest periods, or what business expenses were incurred or why the expenses were necessary. This information can be obtained through discovery. The allegations in support of the second through sixth causes of action are sufficient as pled.

Therefore, the demurrer to the second through sixth causes of action is OVERRULED.

Seventh Cause of Action for Failure to Furnish Complete and Accurate Wage Statements and Eighth Cause of Action for Waiting Time Penalties for Nonpayment of Wages:

Defendants contend that the seventh and eighth causes of action are insufficiently pled and fail because they are derivative of the causes of action for failure to pay earned wages.

The seventh cause of action alleges that Defendant failed to furnish Plaintiff with complete, accurate wage statements, in violation of California Labor Code section 226, subdivision (a). The deficiencies included, but are not limited to, the failure to include the total number of hours worked by Plaintiff and the failure to include the correct net and gross wages paid to Plaintiff. (Complaint, ¶ 89.) The eighth cause of action alleges that Plaintiff is entitled to “waiting time” penalties because he was not paid all wages he was due within 24 hours of his termination. (Complaint, ¶ 94-95.) Since these causes of action are derivatives of the preceding wage-and-hour causes of action which the court finds are adequately pled, the seventh and eighth causes of action are also sufficiently pled.

Therefore, the demurrer to the seventh and eighth causes of action is OVERRULED.

Ninth cause of action for Discrimination, tenth cause of action for Harassment, eleventh cause of action for Retaliation, and twelfth

cause of action for Failure to Prevent Discrimination, Harassment, and Retaliation:

Defendant challenges the ninth through twelfth causes of action on the grounds “the Complaint fails to allege facts showing conduct that was sufficiently severe or pervasive as a matter of law.” (Demurrer, 11:27-28.)

The Complaint alleges that beginning in February 2025, Terry Lujan (a management-level employee) regularly told Plaintiff about sexual experiences with her partner, including using sex toys and other paraphernalia during sexual intercourse. (Complaint, ¶ 27.) She also intentionally and offensively touched Plaintiff without his consent on multiple occasions. (Complaint, ¶ 27.) David Hazel, another management-level employee also regularly told Plaintiff about sexual experiences with his partners. (Complaint, ¶ 28.) He repeatedly invited Plaintiff to visit a strip club while they were on-duty, which Plaintiff invariably rejected, made crude remarks about hiring sex workers, and showed Plaintiff pornographic images and videos on his cell phone and sent photographs of himself at a strip club to Plaintiff’s personal cell phone. (Complaint, ¶ 28.) These allegations are sufficient at the pleading stage to allege severe or pervasive conduct.

Therefore, the demurrer to the ninth through twelfth causes of action is OVERRULED.

Thirteenth Cause of Action for Wrongful Termination in Violation of Public Policy:

“The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

Defendant contends the thirteenth cause of action fails to sufficiently allege the third element because Plaintiff has not sufficiently alleged the termination was wrongful under accepted public policy. Specifically, Defendant argues the Complaint fails to cite to specific statutes or constitutional provisions. The Complaint alleges “Defendants’ retaliatory termination of Plaintiff violated public policy, including, without limitation, provisions contained within and public policies tethered to the FEHA and Article I of the California Constitution. These laws aim to protect employees from being victimized by their employer through discrimination, harassment, retaliation, and other unlawful and unfair misconduct.” (Complaint, ¶ 138.) This is sufficient to allege a violation of public policy.

Therefore, the demurrer to the thirteenth cause of action is OVERRULED.

		Moving party to give notice.
9.	MOULTON TATE VS. HOAG MEMORIAL HOSPITAL PREBYTERIAN 2025-01515942	1. DEMURRER TO COMPLAINT Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Demurrer to Plaintiff’s Complaint is OVERRULED. <u>First Cause of Action for Breach of Contract</u> “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (<i>Ibid.</i>) “In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (<i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [citation omitted].) Defendants demur on the grounds Plaintiff failed to attach a copy of the alleged contract to the complaint or state the essential terms of the contract and the specific provisions breached. Plaintiff alleges she entered into a Master Service Agreement (MSA) with Defendants on 8/22/24 and a Statement of Work Amended #2 (SOW) on 11/1/24. (Compl. ¶¶ 6, 15.) Plaintiff alleges Defendants breached the MSA by failing to provide her with written notice prior to termination. (Compl. ¶ 10.) Plaintiff further alleges Defendants breached the SOW, which provided Plaintiff a weekly compensation of \$3,400 through 12/31/25. (Compl. ¶ 15.) As such, Plaintiff has sufficiently alleged the legal effect of the contract (e.g., requirement to provide written notice of termination and a weekly compensation of \$3,400). The Court OVERRULES the demurrer to the first cause of action. <u>Second Cause of Action for Failure to Pay Overtime Wages/Misclassification under Labor Code Sections 203, 510, 1194, and 1198</u> Plaintiff alleges: